



ශ්‍රී ලංකා ප්‍රජාතාන්ත්‍රික සමාජවාදී ජනරජයේ ගැසට් පත්‍රය

අති විශේෂ

The Gazette of the Democratic Socialist Republic of Sri Lanka

EXTRAORDINARY

අංක 2101/18 – 2018 දෙසැම්බර් මස 11 වැනි අඟහරුවාදා – 2018.12.11

No. 2101/18 – TUESDAY, DECEMBER 11, 2018

(Published by Authority)

PART I : SECTION (I) – GENERAL

Government Notifications

My No. : CI / 1812.

THE INDUSTRIAL DISPUTES ACT, CHAPTER 131

THE Collective Agreement entered into between Bank of Ceylon, No. 01, BOC Square, Bank of Ceylon Mawatha, , Colombo 01 of the one part and the Ceylon Bank Employees Union, No. 20, Temple Road, Colombo 10 of the other part on 09th August 2018 is hereby published in terms of Section 06 of the Industrial Disputes Act, Chapter 131, of the Legislative Enactments of Ceylon (Revised Edition 1956).

A. WIMALAWEERA,
Commissioner General of Labour.

Department of Labour,
Labour Secretariat,
Colombo 05.
23rd November, 2018.



Collective Agreement No. 31 of 2018**COLLECTIVE AGREEMENT**

Between

Bank of Ceylon of No. 01, "BOC Square", Bank of Ceylon Mawatha, Colombo 01
of the one part

And

Ceylon Bank Employees' Union, No. 20, Temple Road, Colombo 10,
of the other part

THIS Collective Agreement is made on this 09th day of August, Two Thousand Eighteen (09th August, 2018), by and between the Bank of Ceylon of the one part (hereinafter referred to as the "Bank") and the Ceylon Bank Employees Union of the other part (hereinafter referred to as "the Union").

Title.—This Agreement will be known and referred to as "BANK OF CEYLON COLLECTIVE AGREEMENT" with THE CEYLON BANK EMPLOYEES' UNION for the period First day of January, Two Thousand Eighteen to Thirty First day of December, Two Thousand and Twenty (01.01.2018 - 31.12.2020).

1. ***Employer to be Covered and Bound.***— This Agreement shall cover and bind the Bank of Ceylon, which is a party to this Agreement.

2. ***Employees to be Covered and Bound.***— This Agreement shall cover and bind members of the Union in employment with the Bank of Ceylon and employees who are in any of the categories for which a salary scale has been prescribed in this Agreement in the Annex hereto:

3. ***Date of Operation and Duration.***— This Agreement shall be effected from First day of January Two Thousand and Eighteen (01st January 2018) and thereafter continue to be in force, unless it is determined by either party giving six months notice in writing to the other party provided, however, that no party shall give such notice to the other party after the First day of July Two Thousand and Twenty. (01st July 2020).

4. ***Matters Covered and Variation of Terms and Conditions of Employment and Benefits .—***

(a) This Agreement shall be in full and final settlement of all matters covered herein as well as of all the matters raised by the Union in relation to the period 2018 – 2020 and in respect of which negotiations took place between the parties before the conclusion of this Agreement and the Union agrees that it will not during the continuance in force of this Agreement raise any of the matters which were discussed and negotiated between the parties preceding this Agreement other than the matters relating to non salary benefits which shall be discussed by the Management of the Bank with the Ceylon Bank Employees' Union and reach finality on or before Thirty First day of December Two Thousand and Eighteen (31st December 2018). After an Agreement has been arrived at, as regard non-salary benefits the terms and conditions of same shall be annexed to this Agreement, which shall form an integral part thereof.

(b) The Union and its members shall not during the continuance in force of this Agreement seek to vary, alter or add to all or any of the terms and conditions of employment or benefits applicable or enjoyed as provided for in this Agreement other than by mutual agreement with the Bank.

5. ***Salary Components.***— As from First day of January Two Thousand and Eighteen (01st January 2018) each employee covered and bound by this Agreement shall be paid upon and subject to the other terms and conditions herein contained a monthly salary which comprises the following components.

- (a) Fixed Component linked to “Basic Salary” and related allowances.
- (b) Variable Component linked to performance. (Please refer Section 5.2)

5.1 Fixed Component

The Fixed Component comprises the following items:–

- (i) Revised Basic Salary as set out in the Annexure hereto.
(Increments will be granted continuously notwithstanding the maximum point given in the salary scales.)
- (ii) Allowances
 - (a) In addition to the basic salary, the following allowances will be paid effective from First day of January Two Thousand and Eighteen (01st January 2018)
 - (i) Cost of Living Allowance as per item (b) below
 - (ii) Rent Allowance as per item (c) below
 - (iii) 10% of Basic Salary, Rent Allowance and Cost of Living Allowance
 - (b) The Cost of Living Allowance at the rate of Rs. 2.75 will be frozen as at December 1999 at the index point of 2404.9. Commencing from January 2000, every one (01) point change over and above the Colombo Consumer Price Index (CCPI) of December 1999 only will be computed at Rs. 3.00. If the index point drops below the December level, i.e. 2404.9, the computation should be at the rate of Rs. 2.75 per point.
 - (c) The Rent Allowance, which will be 20% of the Basic salary.

5.2 Variable Component

Basis of determination of Variable Component shall be decided upon in the course of time.

6. **Taxes on Emoluments.**– PAYE Tax on emoluments of staff shall be borne by the Bank.

7. **Conversion of the Basic Salary.** –

- (a) The basic salaries of all employees will be converted to the revised scale by applying the step for step (point by point) method of conversion.

Eg. An employee who had been on the 5th step of the scale as at 31.12.2017 will be placed on the 5th step of the relevant revised scale with effect from 01.01.2018.

- (b) Non-Banking Stream personnel shall also be placed at the appropriate revised salary scale on the same basis.

8. **Conversion Anomalies.** – The Bank of Ceylon and the Ceylon Bank Employees Union jointly agree to execute the Collective Agreement for the years 2018-2020 subject to referring to a Salary and the Cadre Committee to examine the possible anomalies associated with calculation of increments in the salary scales.

9. **Review of the Salary Structure.** – The Bank of Ceylon and the Ceylon Bank Employees’ Union jointly agree to review the existing salary structure of the employees referred in Clause No. 05 of this Agreement.

10. **Other Commitments.** – The Union further agrees to assist, co-operate and support the Management of the Bank in every manner to obtain the maximum contribution of its members to achieve the targets set out in the Business Plan of the Bank.

11. Where the existing terms and conditions of employment of an employee covered and bound by this agreement and any existing concessions extended to the members of the Union are more favorable than the terms and conditions provided for in this Agreement, then nothing in this Agreement shall in any way affect or prejudice such existing terms and conditions of employment or such concessions shall continue to exist, notwithstanding anything to the contrary contained herein.

12. Where an employee was immediately prior to the date hereof entitled to, becomes entitled on or after that date under or by virtue of any law, contract, agreement, award or custom to any rights or privileges more favorable than those to which he/she would be entitled under this agreement, nothing in this agreement shall be deemed or construed to authorize or permit the Bank to withhold, restrict or terminate such right or privilege.

For and on behalf of the





